

This was the court's mistake and it extends its apology.

Disposition

Motion will be continue to 5/12/26, 9am.

Plaintiff to notify Defendant.

2. 9:00 AM CASE NUMBER: L24-02377

CASE NAME: BANK OF AMERICA N.A. VS. CARLOS GONZALEZ

***HEARING ON MOTION IN RE: MOTION TO SET ASIDE DISMISSAL AND ENTER JUDGMENT UNDER STIPULATION FILED BY PLN ON 11/24/25**

FILED BY: BANK OF AMERICA N.A.

TENTATIVE RULING:

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed. However, this motion was originally scheduled for 2/24/06, but was rescheduled for 3/24/26. And though there was mail notice for the 2/24/26 appearance, it does not appear that the court notified Defendant of the new date.

This was the court's mistake, and it extends its apology.

Disposition

Motion will be continue to 5/12/26, 9am.

Plaintiff to notify Defendant.

3. 9:00 AM CASE NUMBER: L24-06534

CASE NAME: CITIBANK N.A. VS. MARIA MOJICA

***HEARING ON MOTION IN RE: TO VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT**

FILED BY: CITIBANK N.A.

TENTATIVE RULING:

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed. However, this motion was originally scheduled for 2/24/06, but was rescheduled for 3/24/26. And though there was mail notice for the 2/24/26 appearance, it does not appear that the court notified Defendant of the new date.

This was the court's mistake and it extends its apology.

Disposition

Motion will be continue to 5/12/26, 9am.

Plaintiff to notify Defendant.

4. 9:00 AM CASE NUMBER: L24-10099

CASE NAME: CAPITAL ONE, N.A. VS. IRIS C ARNEDO

***HEARING ON MOTION IN RE: ON THE PLEADINGS**

FILED BY: CAPITAL ONE, N.A.

TENTATIVE RULING:

Background

Plaintiff filed, on 12/17/25, a Motion for Judgment on the Pleadings. The motion was timely served by mail on Defendant. The Motion is unopposed.

On 8/12/25, the court granted Plaintiff's Motion to deem matters true those requested in Plaintiff's Request for Admissions. All requests for admission, provided in the declaration filed 4/2/25, were deemed to be true by the court.

Analysis

A motion for judgment on the pleadings may be brought by a plaintiff where the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. Code Civ. Proc. § 438(c); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2024) ("Rutter Civ. Pro.") § 7:290. The grounds for a motion for judgment on the pleadings must appear on the face of the pleadings or be based on facts that a court may judicially notice. Civ. Proc. § 438(d); Rutter Civ. Pro., § 7:291. Matters that may be judicially noticed include a party's admissions or concessions which cannot reasonably be controverted. *Pang v. Beverly Hospital, Inc.* (2000) 79 Cal.App.4th 986, 989-990.

Plaintiff's Complaint alleges Breach of Contract as the sole cause of action, based on the allegation that Defendant became indebted in the amount of \$8,926.31, on a credit card account.

Defendant's Answer denies the allegations of the Complaint and states various affirmative defenses.

Later, Plaintiff filed a motion to deem the truth of matters admitted in a set of Request for Admissions (the "RFAs") served on Defendant which was granted by the Court. See